

4	Pinnacle Flooring, Inc. vs. Ahir 30-2025-01497273	<u>Motion for Entry of Judgment</u> Plaintiff Pinnacle Flooring, Inc.'s Application for Entry of Stipulated Judgment is GRANTED. The court ORDERS that Judgment shall be ENTERED in favor of Plaintiff Pinnacle Floring, Inc. and against Defendants Mehul Ahir and Ketty Ahir in the amount of \$69,500 plus \$7,140 in reasonable attorney's fees. Plaintiff Pinnacle Flooring, Inc. is ORDERED to prepare a proposed judgment consistent with this ruling and serve it upon Defendants Mehul Ahir and Ketty Ahir and submit it to the court pursuant to Rules of Court rule 3.1590(h). The Court FINDS good cause to allow Plaintiff Pinnacle Flooring, Inc. 30 days from the date of this ruling to prepare, serve, and submit the proposed judgment. The court will not enter judgment until Defendants Does 1-10 have been dismissed from this action. <u>Pending Motion</u> Plaintiff Pinnacle Flooring, Inc. moves for an order to enter judgment against Defendants Mehul Ahir and Ketty Ahir pursuant to the Settlement Agreement dated September 18, 2025. <u>Standard for Entry of Judgment</u> Civil Procedure Code section 664.6 provides: "If parties to pending litigation stipulate, in a writing signed by the parties outside the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement." (Code Civ. Proc., § 664.6, subd. (a).) As the Court of Appeal has explained: The purpose of section 664.6 is "to provide a summary procedure for specifically enforcing a settlement contract without the need for a new lawsuit." "If the court determines that the parties entered into an enforceable settlement, it should grant the motion and enter a formal judgment pursuant to the terms of the settlement."
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		(<i>Greisman v. FCA US, LLC</i> (2024) 103 Cal.App.5th 1310, 1321, quoting <i>Weddington Productions, Inc. v. Flick</i> (1998) 60 Cal.App.4th 793, 809; see also <i>Eagle Fire and Water Restoration, Inc. v. City of Dinuba</i> (2024) 102 Cal.App.5th 448, 457 [“section 664.6 provides an expedited procedure for enforcing the parties’ settlement agreement”]; <i>Hines v. Lukes</i> (2008) 167 Cal.App.4th 1174, 1182 [“Code of Civil Procedure section 664.6 provides a summary procedure to enforce a settlement agreement by entering judgment pursuant to the terms of the settlement.”].) Pursuant to Section 664.6, “even though a settlement may call for a case to be dismissed, or the plaintiff may dismiss the suit of its own accord, the court may nevertheless retain jurisdiction to enforce the terms of the settlement, until such time as all of its terms have been performed by the parties, <i>if the parties have requested this specific retention of jurisdiction.</i>” (<i>Wackeen v. Malis</i> (2002) 97 Cal.App.4th 429, 439, italics original.) However, “[a] trial court cannot enforce a settlement under section 664.6 unless the trial court finds the parties expressly consented . . . to the material terms of the settlement.” (<i>Bowers v. Raymond J. Lucia Companies, Inc.</i> (2012) 206 Cal.App.4th 724, 732.) Thus, before granting a motion to enforce a judgment, the court must determine “whether the parties entered into a binding settlement agreement of all or part of a case.” (<i>In re Marriage of Assemi</i> (1994) 7 Cal.4th 896, 911.) <u>Existence and Validity of Settlement Agreement</u> Plaintiff has presented evidence that the parties entered into a settlement agreement, the terms of which were memorialized in the Settlement Agreement dated September 18, 2025 (Settlement Agreement). (See Decl. of Stephen Kitagawa, Esq. in Supp. of Pltf.’s Ex Parte Application for Entry of Stipulated Judgment (Kitagawa Decl.), ¶¶ 8-13, Exh. 3.), The Settlement Agreement provides that its terms would be enforceable through Code of Civil Procedure section 664.6. (See <i>id.</i>, Exh. 3, ¶ 1.2.)
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		Plaintiff also has established that Defendants Mehul Ahir and Ketty Ahir breached the Settlement Agreement by failing to make the requirement payments on October 15, 2025, November 15, 2025, December 15, 2025, January 15, 2026, February 15, 2026, and March 15, 2026 and not cured their failure to make payment. (See <i>id.</i>, ¶¶ 18-26, Exh.s 5-7.) Therefore, the court “may enter judgment pursuant to the terms of the settlement.” (Code Civ. Proc., § 664.06, subd. (a).) The Settlement Agreement allows for the entry of judgment “in the sum of \$81,000, plus prejudgment interest from the date of this agreement at the rate of 10% annually, minus any payments made pursuant to this agreement.” (Kitagawa Decl., Exh. 3, ¶ 1.2.) Plaintiff has presented evidence that Defendants Mehul Ahir and Ketty Ahir made an initial payment of \$11,500, such that the amount of the judgment should be \$69,500. (See <i>id.</i>, ¶ 27.) Plaintiff also requests prejudgment interest at the rate of 10% per annum, but fail to state the amount of this prejudgment interest, either on a per day or per month basis such that the court is unable to determine this amount. The Settlement Agreement also makes Defendants Mehul Ahir and Ketty Ahir responsible for attorney’s fees incurred in executing and enforcing the Settlement Agreement. (See <i>id.</i>, Exh. 3, ¶ 1.1.5.) Plaintiff seeks and has presented evidence that it incurred \$7,140 in attorney’s fees. (See <i>id.</i>, ¶ 31.) Defendants Mehul Ahir and Ketty Ahir have failed to file an opposition or respond to the instant motion. Thus, they have waived any arguments regarding this motion. (See <i>Nazir v. United Airlines, Inc.</i> (2009) 178 Cal.App.4th 243, 288 [failure to address or oppose issue in motion constitutes waiver of that issue]; see <i>DuPont Merck Pharmaceutical Co. v. Superior Court</i> (2000) 78 Cal.App.4th 562, 566 [holding that failure to challenge contention in brief results in the concession on that issue].) Therefore, the court will grant the motion.
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5	Escamilla vs. Suchard 30-2022-01282888	<u>Motion for Entry of Judgment</u> Plaintiff Daniel Escamilla's Motion to Enforce Settlement Agreement Pursuant to Code of Civil Procedure s 664.6 and for Attorney's Fees in the Amount of \$3,200 is GRANTED. The court ORDERS that Judgment shall be ENTERED in favor of Plaintiff Daniel Escamilla and against Defendant Talmor Suchard in the amount of \$29,100 plus \$3,200 in reasonable attorney's fees. Plaintiff Daniel Escamilla is ORDERED to prepare a proposed judgment consistent with this ruling and serve it upon Defendant Talmor Suchard and submit it to the court pursuant to Rules of Court rule 3.1590(h). The Court FINDS good cause to allow Plaintiff Daniel Escamilla 30 days from the date of this ruling to prepare, serve, and submit the proposed judgment. The court will not enter judgment until Defendants Does 1-50 have been dismissed from this action. <u>Pending Motion</u>